

OPERATING AGREEMENT OF

BLACK GOLD EQUITY PARTNERS LLC

A Texas Limited Liability Company

This Operating Agreement (the "Agreement") is made effective as of [Effective Date] (the "Effective Date"), by and between the Members listed in Section 2 below, with all Members collectively referred to as the "Members."

1. FORMATION AND BASIC INFORMATION

- 1.1. **Name.** The name of the limited liability company is **Black Gold Equity Partners LLC** (the "Company").
- 1.2. **Type.** The Company is a limited liability company organized under the Texas Business Organizations Code (the "TBOC").
- 1.3. **Principal Office.** The principal office of the Company shall be located in Houston, Texas, or such other place within or outside Texas as the Members may determine.
- 1.4. **Registered Agent and Office.** The registered agent and office shall be as listed in the Company's Certificate of Formation filed with the Texas Secretary of State.
- 1.5. **Term.** The Company commenced on the date the Certificate of Formation was filed with the Texas Secretary of State and shall continue perpetually unless dissolved in accordance with this Agreement or the TBOC.
- 1.6. **Purpose.** The purpose of the Company is to engage in any lawful act or activity for which an LLC may be organized under Texas law, including but not limited to investment, holding, financing, and operating business interests.

2. MEMBERS AND OWNERSHIP

2.1. Members. As of the Effective Date, the Members are:

Member Name	Ownership Interest	Capital Contribution
Arthur Lyons	___%	[\$amount if applicable]
Ryan [Last Name]	___%	[\$amount if applicable]

- 2.2. **Admission of Members.** No Person shall be admitted as a Member without the written consent of all Members.
- 2.3. **No Other Interests.** The Company shall issue only Membership Interests.

3. CAPITAL CONTRIBUTIONS

- 3.1. Each Member's capital contribution is described in Section 2.1.
- 3.2. Additional contributions require unanimous written consent.

4. ALLOCATIONS AND DISTRIBUTIONS

4.1. Profits, losses, deductions, credits, and similar items shall be allocated to Members in proportion to their Ownership Interests.

4.2. Distributions shall be made: (a) first, to satisfy obligations of the Company; (b) second, as determined by the Members.

4.3. Timing of distributions shall be determined by the Members.

5. MANAGEMENT AND VOTING

5.1. **Management.** The Company shall be **Member-Managed**.

5.2. **Operators.** Arthur Lyons and Ryan [Last Name] are designated as the operators responsible for day-to-day banking, accounts, financing, and operational decisions.

5.3. **Voting.** Except as otherwise stated in this Agreement or required by Texas law: (a) Routine decisions may be made by consent of both Members. (b) Major decisions require unanimous written consent: i. Admission of new Members; ii. Borrowing beyond [amount threshold]; iii. Sale of substantially all Company assets; iv. Amendment of this Agreement; v. Filing for bankruptcy; vi. Issuance of additional Membership Interests.

5.4. **Banking Authority.** Both Members are authorized to: (a) open, maintain, and close bank and brokerage accounts in the Company's name; (b) negotiate, execute, and deliver financing documents, promissory notes, security agreements, and related instruments; (c) borrow funds on behalf of the Company; (d) pledge Company assets as collateral for financing; (e) designate signatories on accounts and lines of credit; (f) make electronic fund transfers and authorized payments; and (g) request banking documentation for lenders, auditors, or regulators.

This authority may be presented to banks, lenders, title companies, and other institutions. If a lender requires additional documentation, both Members will execute any separate resolutions or signature cards reasonably requested.

6. TAXES AND RECORDS

6.1. For federal and state income tax purposes, the Company shall be treated as either: (a) a disregarded entity (if one Member), or (b) a partnership (if two or more Members), unless the Members unanimously elect otherwise in writing.

6.2. The Company shall maintain complete books and records, including a ledger of contributions, allocations, and distributions.

6.3. Each Member shall receive a Schedule K-1 (or comparable statement) for tax purposes.

7. TRANSFER RESTRICTIONS

7.1. **Right of First Refusal.** If a Member proposes to transfer all or part of their Membership Interest, the other Member shall have a right of first refusal on the same terms.

7.2. **Permitted Transfers.** Transfers may be made only with unanimous written consent.

7.3. **No Withdrawal Without Consent.** A Member may not withdraw voluntarily without unanimous written consent.

8. DISSOLUTION AND WINDING UP

8.1. The Company shall be dissolved and wound up upon: (a) unanimous written consent of all Members; (b) a judicial decree under TBOC § 11.051 or successor statute; or (c) entry of an administrative decree by the Texas Secretary of

State.

8.2. Upon dissolution, assets shall be distributed first to creditors, then to Members in proportion to their Ownership Interests.

9. INDEMNIFICATION

9.1. The Company shall indemnify Members and operators against claims, losses, or liabilities arising from actions taken in good faith and within the scope of authority granted under this Agreement or Texas law, to the fullest extent permitted by the TBOC.

10. MISCELLANEOUS

10.1. **Governing Law.** This Agreement is governed by Texas law, without regard to conflict-of-law principles.

10.2. **Entire Agreement.** This Agreement, together with the Certificate of Formation, constitutes the entire agreement of the Members.

10.3. **No Oral Modification.** This Agreement may be amended only by written instrument signed by all Members.

10.4. **Severability.** If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

10.5. **Counterparts and Electronic Signatures.** This Agreement may be executed in counterparts, including electronic signatures, each of which shall be deemed an original.

10.6. **Waiver.** Failure to enforce any right does not constitute a waiver of that right.

11. EXECUTION

IN WITNESS WHEREOF, the Members have executed this Operating Agreement as of the Effective Date first written above.

MEMBER / OPERATOR:

Arthur Lyons Signature: _____ Printed Name: Arthur Lyons Date: _____

MEMBER / OPERATOR:

Ryan [Last Name] Signature: _____ Printed Name: Ryan [Last Name] Date: _____

12. BANKING-LENDER ADDENDUM (OPTIONAL)

The following may be provided to a lender as a certified consent resolution when required:

The undersigned Members of Black Gold Equity Partners LLC, a Texas limited liability company, hereby (a) ratify and approve the borrowing of funds from [Lender Name] in the ordinary course, (b) authorize the opening of account(s) with [Lender Name], (c) appoint Arthur Lyons and Ryan [Last Name] as authorized signatories, and (d) authorize the lender to rely on this resolution until written revocation is received.

Signed: _____ (Arthur Lyons) Signed: _____ (Ryan [Last Name])

NOTES FOR USER

1. Fill bracketed placeholders: [Effective Date] , [Last Name] , [amount if applicable] , [amount threshold] , and [Lender Name] .
2. File the Company's Certificate of Formation with the Texas Secretary of State before executing this Agreement.
3. Obtain an EIN from the IRS for banking, even if taxed as a disregarded entity.
4. Banks often ask for a separate "banking resolution." The addendum above can satisfy many requests, but some lenders require their own form.
5. For commercial credit or large balances, lenders commonly ask for financial statements, proof of identity, and personal guarantees — review those separately.
6. Consult a Texas-licensed attorney to confirm compliance with the current TBOC and any lender-specific requirements.